

HOUSE No. 4065

The Commonwealth of Massachusetts

PRESENTED BY:

David Henry Argosky LeBoeuf

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to supporting survivors of domestic violence and enhancing child welfare.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>David Henry Argosky LeBoeuf</i>	<i>17th Worcester</i>	<i>1/17/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>6/17/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>2/11/2025</i>

HOUSE No. 4065

By Representative LeBoeuf of Worcester, a petition (accompanied by bill, House, No. 4065) of David Henry Argosky LeBoeuf and Patrick Joseph Kearney relative to survivors of domestic violence and enhancing child welfare. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to supporting survivors of domestic violence and enhancing child welfare.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 119 of the General Laws is hereby amended by inserting after
2 section 29D the following section:-

3 Section 29E. In court proceedings related to the removal of a child from their home for
4 neglect, there shall be a rebuttable presumption that neglect does not include a failure of a victim
5 of domestic violence to: (i) prevent a child from witnessing the domestic violence; (ii) leave the
6 home in which the alleged perpetrator resides; (iii) end a relationship with the alleged
7 perpetrator; (iv) report the domestic violence to law enforcement or the department; or (v) seek
8 an order of protection against the alleged perpetrator. For the purposes of this section, “domestic
9 violence” shall include coercive control, as defined in section 1 of chapter 209A.

10 SECTION 2. Said chapter 119 is hereby further amended by inserting after section 37 the
11 following section:-

Section 37A. (a) There shall be a rebuttable presumption in all department proceedings that neglect of a child does not include a failure of a victim of domestic violence to: (i) prevent a child from witnessing the domestic violence; (ii) leave the home in which the alleged perpetrator resides; (iii) end a relationship with the alleged perpetrator; (iv) report the domestic violence to law enforcement or the department; or (v) seek an order of protection against the alleged perpetrator. For the purposes of this section, “domestic violence” shall include coercive control, as defined in section 1 of chapter 209A.

(b) All employees of the department shall have mandatory training on issues related to domestic violence.